

NOTICE OF SALE

SUPREME COURT COUNTY OF KINGS, NYCTL 1998-2 TRUST AND THE BANK OF NEW YORK MELLON
AS COLLATERAL AGENT AND CUSTODIAN, Plaintiff, vs. AMALIO GUERRERO, ET AL., Defendant(s).

Pursuant to an Order Confirming Referee Report and Judgment of Foreclosure and Sale dated
September 2, 2025 and entered on January 12, 2026, I, the undersigned Referee will sell at public
auction at the Kings County Supreme Court, Courtroom 224, 360 Adams Street, Brooklyn, NY on
June 25, 2026 at 2:30 p.m., all that certain plot, piece or parcel of land, with the buildings and
improvements thereon erected, situate, lying and being in the Borough of Brooklyn, County of Kings,
City and State of New York, Block 4465 and Lot 52.

Said premises may also be known as 771 Autumn Avenue, Brooklyn, NY.

Approximate amount of judgment is \$84,931.47 plus interest and costs.

Premises will be sold subject to provisions of filed Judgment and Terms of Sale.

Index # 1161/2019.

Aaron Tyk, Esq., Referee

The Law Office of Thomas P. Malone, PLLC, 100 Park Avenue, 16th Floor, New York, New York
10017, Attorneys for Plaintiff

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

NYCTL 1998-2 TRUST and THE BANK OF NEW YORK
MELLON as Collateral Agent and Custodian,

Plaintiffs,

-against-

AMALIO GUERRERO, if living, and if he/she be dead, his/her
representative heirs-at-law, next of kin, distributees, executors,
administrators, trustees, devisees, legatees, assignees, lienors,
creditors, and successors in interest, and generally all persons
having or claiming under, by or through said defendants who may
be deceased, by purchase, inheritance, lien or otherwise, any right,
title or interest in and to the premises described in the amended
complaint herein, GRAY MANAGEMENT NY LLC, SYCP LLC,
CADLEROCK JOINT VENTURE L.P., EMC MORTGAGE
CORPORATION, CITY OF NEW YORK PARKING
VIOLATIONS BUREAU, CITY OF NEW YORK
ENVIRONMENTAL CONTROL BOARD, NEW YORK STATE
DEPARTMENT OF TAXATION & FINANCE, THE UNITED
STATES OF AMERICA, JASON "SMITH," TERRANCE
"SMITH," KEVIN "SMITH,"

Defendants.

Index No. 1161/2019

AFFIDAVIT OF SERVICE

Tax Lien Foreclosure

Block: 4465; Lot: 52

a/k/a 771 Autumn Avenue
Brooklyn, New York

STATE OF NEW YORK)
COUNTY OF NEW YORK) ss.:

Sandra Fernandez, duly sworn, deposes and says; that deponent is not a party to the within
action, is over 18 years of age and is employed at 100 Park Avenue, 16th Floor, New York, New
York, 10017.

That on the 30th day of March, 2026, deponent served the within:

NOTICE OF SALE

upon the following named persons in the above entitled action at the addresses given below:

Joseph R. Vasile, Esq. as Guardian Ad Litem and Military
Attorney for Defendant Amalio Guerrero
5009 Avenue N
Brooklyn, NY 11234

Gray Management NY LLC
320 Roebling Street, Suite 324
Brooklyn, NY 11249

Anthony J. Ortiz, Esq.
Friedman Vartolo LLP
Attorneys for Defendant SYCP LLC
85 Broad Street, Suite 501
New York, NY 10004

Stephen Vlock, Esq.
Vlock & Associates, P.C.
Attorneys for Defendant Cadlerock Joint Venture L.P.
630 Third Avenue – 18th Floor
New York, NY 10017

EMC Mortgage Corporation
c/o CT Corporation System
28 Liberty Street
New York, NY 10005

City of New York Parking Violations Bureau
c/o Corporation Counsel of the City of New York
100 Church Street – 1st Floor
New York, NY 10007

City of New York Environmental Control Board
c/o Corporation Counsel of the City of New York
100 Church Street – 1st Floor
New York, NY 10007

New York State Department of Taxation & Finance
c/o Attorney General of the State of New York
300 Motor Parkway, Suite 125
Hauppauge, NY 11788

The United States of America
Joseph Nocella, Jr., United States Attorney
c/o Cyril Murray, Special Assistant U.S. Attorney
Eastern District of New York
271 Cadman Plaza East
Brooklyn, NY 11201

Jason “Smith”
771 Autumn Avenue
Brooklyn, NY 11208

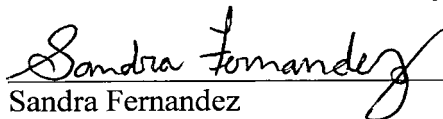
Terrance "Smith"
771 Autumn Avenue
Brooklyn, NY 11208

Kevin "Smith"
771 Autumn Avenue
Brooklyn, NY 11208

Aaron Tyk, Esq. as Referee
902 Ocean Parkway, Apt. 4E
Brooklyn, NY 11230

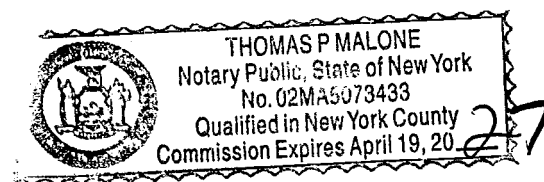
Foreclosure Department
Supreme Court, Kings County
360 Adams Street, Room 766
Brooklyn, NY 11201

at the addresses designated for that purpose by depositing a true copy(ies) of same enclosed in a postpaid properly addressed wrapper(s), in a post office official depository under the exclusive care and custody of the United States Postal Services within New York County.


Sandra Fernandez

Sworn to before me this 30th day
of March, 2026


Notary Public



***** Please be advised that no other party has answered, appeared demanding notice of this application, or is otherwise entitled to notice hereof. *****

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No. 1161/2019

NYCTL 1998-2 TRUST and THE BANK OF NEW YORK MELLON as Collateral Agent and Custodian,

Plaintiffs,

-against-

AMALIO GUERRERO, if living, and if he/she be dead, his/her representative heirs-at-law, next of kin, distributees, executors, administrators, trustees, devisees, legatees, assignees, lienors, creditors, and successors in interest, and generally all persons having or claiming under, by or through said defendants who may be deceased, by purchase, inheritance, lien or otherwise, any right, title or interest in and to the premises described in the amended complaint herein, GRAY MANAGEMENT NY LLC, SYCP LLC, CADLEROCK JOINT VENTURE L.P., EMC MORTGAGE CORPORATION, CITY OF NEW YORK PARKING VIOLATIONS BUREAU, CITY OF NEW YORK ENVIRONMENTAL CONTROL BOARD, NEW YORK STATE DEPARTMENT OF TAXATION & FINANCE, THE UNITED STATES OF AMERICA, JASON "SMITH," TERRANCE "SMITH," KEVIN "SMITH,"

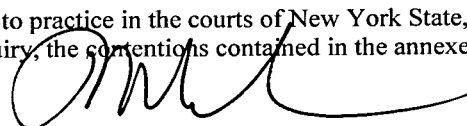
Defendants.

NOTICE OF SALE WITH AFFIDAVIT OF SERVICE

THE LAW OFFICE OF THOMAS P. MALONE, PLLC

Attorneys for Plaintiffs
100 Park Avenue, 16th Floor
New York, New York 10017
Phone: (212) 867-0500
Fax (212) 867-0511

Pursuant to 22 NYCRR 130-1.0, the undersigned an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief formed after reasonable inquiry, the contentions contained in the annexed papers are not frivolous.



Thomas P. Malone, Esq.